

Opinion of SOTOMAYOR, J.

governmental action affecting property interests” and “across this enormous swath of potential litigation would hover the difficulty of devising a . . . standard that could guide an employee’s conduct and a judicial factfinder’s conclusion.” 551 U. S., at 561. Because of the “elusiveness of a limiting principle” for claims like the landowner’s, *id.*, at 561, n. 11, the Court decided that courts were ill equipped to tailor an appropriate remedy, *id.*, at 562.

Boule’s First Amendment retaliation claim raises similar concerns. Unlike the constitutional rights this Court has recognized as cognizable under *Bivens*, First Amendment retaliation claims could potentially be brought against many different federal officers, stretching substantially beyond the “common and recurrent sphere of law enforcement” to reach virtually all federal employees. *Ziglar*, 582 U. S., at 134. Under such circumstances, this Court’s precedent holds that “‘evaluat[ing] the impact of a new species of litigation’” on the efficiency of civil service is a task for Congress, not the courts. *Wilkie*, 551 U. S., at 562; see also *Ziglar*, 582 U. S., at 136–137. I therefore concur in the judgment as to the Court’s reversal of the Court of Appeals’ conclusion that Boule’s First Amendment *Bivens* action may proceed, not for the reasons the Court identifies, *ante*, at 497–500, but because precedent requires it.

III

If the legal standard the Court articulates to reject Boule’s Fourth Amendment claim sounds unfamiliar, that is because it is. Just five years after circumscribing the standard for allowing *Bivens* claims to proceed, a restless and newly constituted Court sees fit to refashion the standard anew to foreclose remedies in yet more cases. The measures the Court takes to ensure Boule’s claim is dismissed are inconsistent with governing precedent.

A

Two Terms ago, this Court reiterated and reaffirmed *Ziglar*’s two-step test for assessing whether a claim may be